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Amending Acts

1. Some Nepal Acts Amendment Act, 2075 2075.11.19
2. Ordinance Amending Certain Acts Relating to Criminal Offences and Criminal Procedure, 2073 2077.06.12
3. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 7 of the year 2073

An Act Made to Amend and Consolidate Laws Relating to Judicial Administration

Preamble: Whereas, it is desirable to amend and consolidate the prevailing laws relating to judicial administration in a timely manner in order to organize the establishment and jurisdiction of courts pursuant to the Constitution of Nepal and to make justice prompt, efficient, easily accessible, impartial, effective and accountable to the people,

The Legislature-Parliament, pursuant to sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Judicial Administration Act, 2073".
(2) This Act shall come into force on such date as the Government of Nepal may appoint by a notification published in the Nepal Gazette. This Act is appointed to come into force from the date 2073.6.3 (published in the Nepal Gazette on 2073.5.29). 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "Court" means the Supreme Court, the High Court and the District Court.
 - (b) "Judge of the High Court" means a Judge of the High Court and also includes the Chief Judge of the High Court.
 - (c) "Prescribed" or "as prescribed" means prescribed or as prescribed under the rules framed under this Act.
 - (d) "Judicial Council" means the Judicial Council pursuant to Article 153 of the Constitution.
 - (e) "Constitution" means the Constitution of Nepal. Chapter-2
- Establishment of District Court and High Court

3. Establishment of District Court: (1) There shall be one District Court in each district.

(2) The District Court shall be located at the headquarters of the district. Provided that, if at the time of commencement of this Act any District Court is located in a place other than the headquarters of the district, it

shall remain in that same place until otherwise provided. 4.

District Judge: (1) There shall be one District Judge in each District Court. (2) Notwithstanding anything contained in sub-section (1), if the workload in any District Court is excessive, the Chief Justice may, on the recommendation of the Judicial Council, assign additional District Judges as required. (3) The Judicial Council shall, subject to the total posts determined pursuant to sub-section (7), determine the number of judges for each District Court according to workload, and may increase or decrease the number of judges so determined based on workload. (4) If there is more than one District Judge in any District Court, the most senior District Judge shall act as the head. (5) The Chief Justice may assign a District Judge of a District Court to also work as a Judge of another District Court for a specified period. (6) The District Judge assigned pursuant to sub-section (5) shall work in the concerned District Court for the assigned period. (7) The Government of Nepal shall, on the recommendation of the Judicial Council, determine the total number of posts of District Judges according to the workload of cases. 5.

Establishment of High Court: (1) There shall be a High Court at the place where the capital of each Province is located. (2) Until a decision is made on the place of the provincial capital pursuant to sub-article (2) of Article 288 of the Constitution, the High Court shall be located at a place designated by the Government of Nepal on the advice of the Judicial Council. (3) The Government of Nepal may, in consultation with the Judicial Council, designate a location for establishing a temporary bench of such High Court in any other place within the provincial jurisdiction of that Court, in addition to the place where the High Court is located. (4) While designating a location for establishing a bench pursuant to sub-section (3), the territorial jurisdiction of such bench shall also be specified. (5) If, at the time of commencement of this Act, there is more than one Court of Appeal in any Province, the Government of Nepal shall, in consultation with the Judicial Council, designate one Court of Appeal as the High Court of that Province and the other Court of Appeal as another bench of the same High Court. (6) Notwithstanding anything contained elsewhere in this section, if, upon a decision on the place of the provincial capital pursuant to sub-article (2) of Article 288 of the Constitution, any High Court is located at a place other than the provincial capital, the Government of Nepal may, in consultation with the Judicial Council, relocate such High Court to the provincial capital. (7) A bench established pursuant to this section shall, within the territorial jurisdiction specified pursuant to sub-section (4), exercise jurisdiction as if it were the High Court under this Act. 6. Judges of High Court: (1) The total number of posts of Judges of the High Court shall be determined as required, not exceeding one hundred and sixty. (2) Subject to sub-section (1), there shall be one Chief Judge and such number of other Judges as specified by the Judicial Council, not less than ten, in each High Court. (3) The Chief Justice shall, on the recommendation of the Judicial Council, assign at least three Judges of the concerned High Court to work at the location of a bench established pursuant to section 5. (4) Among the Judges assigned pursuant to sub-section (3), the most senior Judge shall act as the head. (5) The Government of Nepal may, on the recommendation of the Judicial Council, increase or decrease the number of Judges under sub-section (1) based on the workload of cases. Chapter-3 Jurisdiction of Courts 7.

Jurisdiction of District Court: (1) Except as otherwise provided in the prevailing law, the District Court shall have the power to conduct original proceedings and adjudicate any nature of cases within its district and cases which the High Court has ordered to be heard pursuant to sub-article (2) of Article 145 of the Constitution. (2) The District Court shall have the power to issue a writ of habeas corpus for the enforcement of the right of any person who has been unlawfully detained by any person within its district. (3) The District Court shall have the power to issue an order of injunction for the enforcement of the right of any person if any person or body within its district infringes or is likely to infringe the right conferred by law on that person. (4)

Except as otherwise provided in the prevailing law, the District Court shall have the power to hear appeals against decisions or final orders made by quasi-judicial bodies or officers under federal law within its district, and against decisions or final orders made by local level judicial bodies formed under provincial law. 8. Jurisdiction of High Court: (1) The High Court shall have the power to hear petitions filed pursuant to sub-article (1) of Article 144 of the Constitution and issue necessary and appropriate orders. (2) The High Court shall have the power to conduct original proceedings and adjudicate the following cases:- (a) Cases which are to be originally conducted and adjudicated by the High Court under federal law, (b) Cases transferred from subordinate courts pursuant to sub-article (1) of Article 145 of the Constitution. (3) The High Court shall have the power to hear and decide appeals against the following cases:- (a) Cases originally conducted and adjudicated by the District Court within its territorial jurisdiction pursuant to sub-section (1) of section 7, (b) Cases where a District Court, while hearing an appeal against an original decision or final order made by a judicial body, quasi-judicial body or officer, has partially or fully quashed and decided the case, (c) Cases where the District Court has decided on appeal involving a dispute relating to government or public property, involving a sentence of imprisonment, or involving a fine of more than one hundred thousand rupees or a claim amount of more than five hundred thousand rupees, (d) Cases originally conducted and adjudicated by any judicial body within its territorial jurisdiction, except as otherwise provided in federal law. (4) The High Court shall have the power to review certificates under federal law. 9.

Power of the Supreme Court to hear Appeals: (1) The Supreme Court shall have the power to hear appeals against the following cases:- (a) Cases originally conducted and adjudicated by the High Court pursuant to sub-section (2) of section 8, (b) Cases where the High Court has rendered a judgment imposing a sentence of imprisonment for ten years or more, (c) Cases where the High Court, while hearing an appeal against a decision made by the original court, body or officer in a case involving a sentence of imprisonment for more than three years or a fine of more than five hundred thousand rupees or a claim amount of more than twenty-five hundred thousand rupees, has partially or fully quashed the decision, and (d) Other cases appealable to the Supreme Court under federal law. (2) The Supreme Court shall also have the power to hear appeals in cases where a certificate is filed in the Supreme Court. 10. Provision relating to Certificate: (1) In cases where a certificate needs to be examined under federal law, the certificate shall be filed in the court that hears the appeal. (2) Notwithstanding anything contained in sub-section (1), a certificate shall be filed only in the Supreme Court in cases where the High Court has upheld a sentence of life imprisonment. (3) In cases where a certificate is filed pursuant to sub-section (1) or (2), if an appeal is also filed, the case shall be decided on appeal, and if no appeal is filed by some parties in the same case, the decision shall be made by examining the certificate also in respect of those who have not appealed. (4) In a case examined by way of certificate, if any party who has not appealed or any other concerned person submits a petition raising grounds similar to an appeal, the appellate court shall consider that as well and decide the case. 11.

Provision relating to Review: (1) A case already decided by a final judgment or final order by any court shall not be reviewed by the same court. (2) Notwithstanding anything contained in sub-section (1), the Supreme Court may review its own judgment or final order in the following circumstances:- (a) If it appears that a fact involving evidence of a nature having a substantial effect on the judgment rendered in the case came to the knowledge of the concerned party only after the decision of the case, or (b) If it appears that the judgment or final order is contrary to a precedent or legal principle established by the Supreme Court. (3) The Supreme Court shall not review its judgment or final order in the following circumstances:- (a) Where such judgment or final order has already been reviewed once, (b) Where the judgment or final order has been rendered by a larger full bench, (c) Where the decision has been rendered by the Constitutional Bench, (d) Where a case has been retried and adjudicated under the law prevailing before the commencement of this Act, or (e) Where

the decision of the High Court has been upheld in a case reviewed pursuant to section 12 or where leave for review has not been granted. (4) An application for review shall be filed within sixty days from the date on which the Judge of the Supreme Court signs and certifies the judgment or final order. (5) Upon the application filed pursuant to sub-section (4), an order granting or denying permission shall be made by a judge other than the judge who originally rendered the judgment. (6) If permission is granted pursuant to sub-section (5), such application shall be heard by a bench of judges other than the judge who originally rendered the judgment and the judge who granted the permission. 12.

Provision relating to Retrial of Cases: (1) The Supreme Court may, in cases where no appeal lies to the Supreme Court under this Act or the prevailing law, review a judgment or final order made by the High Court in the following circumstances:- (a) If there is a serious constitutional or legal error in the judgment or final order of the High Court, (b) If the High Court has not followed a legal principle or precedent established by the Supreme Court, or has interpreted or applied it incorrectly, (c) If, in a case involving a dispute relating to government or public property, due to the lack of proper evaluation of evidence contained in the case files, government or public property has been embezzled or such property has suffered damage, or (d) If a child, woman, person with disability, person suffering from mental illness, or a person who has completed the age of seventy-five years could not be properly represented, substantially affecting the judgment. (2) Notwithstanding anything contained in sub-section (1), the following cases shall not be retried:- (a) Cases already retried once by the Supreme Court, (b) Cases decided on appeal by the High Court pursuant to clause (b) of sub-section (3) of section 8. (3) A petition for retrial of a case may be filed within forty-five days from the date of knowledge of the judgment of the High Court, through the High Court that rendered the decision or in the Supreme Court. (4) The application filed pursuant to sub-section (3) shall be accompanied by such details and documents as prescribed. (5) Upon the application received pursuant to sub-section (3), an order granting or denying permission shall be made by a joint bench, considering whether the circumstances under sub-section (1) exist or not. (6) If permission is granted pursuant to sub-section (5), such application shall be heard by a bench of judges other than the judge who granted the permission and the judge who originally rendered the judgment. 13. Possibility of Compromise: Even in cases where an application has been filed under section 11 or 12, a compromise may be reached in cases where compromise is possible under the prevailing law. 14.

Powers of Appellate and Certificate-Reviewing Court: (1) The appellate court and the certificate-reviewing court under this Act or the prevailing law shall have the following powers:- (a) To confirm or partially or fully quash the decision of a subordinate court, body or officer, (b) To render a judgment or final order that the subordinate court, body or officer could have rendered, (c) If the subordinate court, body or officer has omitted to examine evidence relevant to the question to be decided in the case, to examine it itself or to send the case files to the lower court, body or officer to examine such evidence while keeping the case pending, (d) If the subordinate court, body or officer has adjudicated some of the questions to be decided in the case but not others, to set a reasonable time and send the case files to the concerned court, body or officer to decide the remaining questions and conclude the case. (2) Notwithstanding anything contained in clause (d) of sub-section (1), the District Court and the High Court may also enter into and decide questions that the subordinate court, body or officer omitted to decide in cases pending before them. 15. Application may be filed against Interim Orders: (1) Notwithstanding anything contained in the prevailing law, a party dissatisfied with an order made by any court, body or officer, whether for keeping the defendant on bail, bond or in custody for trial, or any other interim order made in the course of proceedings of a case, may file an application in the appellate court one level above. (2) Notwithstanding anything contained in sub-section (1), in cases involving a sentence of imprisonment for ten years or more, nothing shall be deemed to prevent

filing an application in the Supreme Court on a question of legal error or procedural irregularity against an order made for keeping the defendant on bail, bond or in custody for trial. 16. Exercise of Jurisdiction of Court: (1) The jurisdiction of the District Court shall be exercised by a bench of the District Judge. (2) The jurisdiction of the High Court shall be exercised by a bench of one judge or a joint bench of judges as provided in this Act or the rules made under this Act. (3) While deciding a case heard by a joint bench under sub-section (2), if the judges cannot agree, the case shall be submitted before a third judge for decision along with the opinions of both judges.

If a majority is not reached even upon submission before the third judge, the case files along with the opinions of all judges shall be sent to the Supreme Court for decision, after fixing a date for the parties present.

(4) In cases which are to be heard by a bench of two or more judges under the prevailing law, if any other work other than rendering a judgment or final order has been done by a bench of one judge, such work shall not be void. 17. Contempt of Court Proceedings: (1) The Supreme Court may initiate contempt of court proceedings against anyone who obstructs or disobeys the orders or judgments of the Supreme Court or a High Court or District Court in the administration of justice.

(2) The High Court may initiate contempt of court proceedings against anyone who obstructs or disobeys the orders or judgments of the High Court or the subordinate District Court or judicial bodies in the administration of justice.

(3) The District Court may initiate contempt of court proceedings against anyone who obstructs or disobeys the orders or judgments of the District Court or subordinate courts or judicial bodies in the administration of justice.

(4) While initiating proceedings under sub-section (1), (2) or (3), if found guilty of contempt of court, the concerned court may sentence the offender to imprisonment for a term up to one year or a fine up to ten thousand rupees or both, or pass any other appropriate order.

(5) A person against whom contempt of court proceedings have been initiated may, at any stage before the decision of the case, apologize to the court. If the court is satisfied with such apology, it may stay the proceedings of such case.

(6) Notwithstanding anything contained elsewhere in this section, if a person punished for contempt of court apologizes to the satisfaction of the court, the court may order that the punishment not be executed, be reduced, be modified, or if conditions are set and fulfilled, not be executed. 18.

Decision to be Final: (1) Except as otherwise provided in this Act or the prevailing law, a decision made by any court, body or officer in relation to a case or matter shall be final and shall be binding on all concerned parties. (2) Except as otherwise provided in this Act or the prevailing law, a case already decided by any court, body or officer shall not be again proceeded with or the judgment or order amended to make a difference in the adjudication by the same court, body or officer. (3) Notwithstanding anything contained in sub-section (2), clerical errors occurring in writing or printing of a judgment or order may be corrected by preparing a separate note with reasons, provided that it does not substantially affect the judgment. Chapter-4 Provision relating to Transfer of Cases 19. Power to Call for and Adjudicate Cases: The Supreme Court shall have the power, in the circumstances under sub-article (1) of Article 134 of the Constitution, to call for and hear a case pending in any High Court. 20. Power to Order Transfer of Cases: (1) The Supreme Court may, in the circumstances under sub-article (2) of Article 134 of the Constitution, order that a case pending in one

High Court be transferred to another High Court for hearing. (2) The High Court may, in the circumstances under sub-article (2) of Article 145 of the Constitution, order that a case pending in one District Court under its jurisdiction be transferred to another subordinate District Court for hearing. (3) A decision on whether the circumstances for transferring a case under sub-section (1) or (2) exist or not shall be made based on an inspection report of the concerned court, an application of the concerned party to the case, or information obtained from any other source. Chapter-5 Provision relating to Inspection 21.

Provision relating to Inspection: (1) The appellate court shall, by assigning a judge of its court, inspect the offices of subordinate courts, judicial or quasi-judicial bodies or officers at least once a year. (2) While inspecting under sub-section (1), inspection shall be made of the cases pending and disposed of by the concerned court, body or officer. (3) While inspecting under sub-section (2), inspection shall be made specifically of the case files relating to the following:- (a) Cases of persons in custody for trial, (b) Some of the cases that have become final without appeal, (c) Cases involving a child, woman, person with disability, person suffering from mental illness, or a person who has completed the age of seventy-five years as a party, (d) Cases involving matters of public concern or importance, (e) Cases where an indigent person is a party. (4) While inspecting under this section, the following matters shall be examined:- (a) Whether the work of executing judgments has been done in a timely manner, (b) Whether the orders or directions given by the higher court have been complied with, (c) Whether the proceedings in pending cases have been done in a satisfactory manner. (5) While inspecting or examining under sub-section (2), (3) or (4), if it appears that work required to be done by law has not been done or work not required to be done has been done, the inspecting judge shall order at the inspection station that it be done according to law.

Provided that, if it appears that an interim order made in a criminal case where the Government of Nepal is the plaintiff needs to be quashed, a report shall be submitted to the appellate court of the inspected court, and the concerned court shall act according to the order made by that court.

(6) The inspecting judge may seek suggestions or feedback from the employees of the office of the court, body or officer being inspected, the parties to cases present there, legal practitioners and other concerned persons regarding the work and proceedings of the concerned court, body or officer.

(7) After completing the inspection, the inspecting judge shall prepare an inspection and evaluation report and submit such report to the Supreme Court, the concerned appellate court and the Secretariat of the Judicial Council in case of inspection of a court; and in case of inspection of the office of a judicial or quasi-judicial body or officer, it shall be sent to the Supreme Court, the concerned appellate court, the concerned ministry and the concerned body authorized to act on behalf of the provincial government.

(8) Upon receipt of the inspection and evaluation report under sub-section (7), the Judicial Council or the body receiving such report shall, as necessary, promptly investigate and take action on the matters pointed out in the report, and such action shall also be made a basis for evaluation for the career development of the concerned office-holder. 22.

Surprise Inspection: (1) The Supreme Court may, by assigning a judge of its court, conduct a surprise inspection of the judicial work and proceedings of High Courts and District Courts; the High Court may, by assigning a judge of its court, conduct a surprise inspection of subordinate District Courts or the offices of judicial or quasi-judicial bodies or officers; and the District Court may, by assigning a judge of its court, conduct a surprise inspection of the bodies or officers whose appeals it hears. (2) The judge inspecting under sub-section (1) shall prepare an inspection report specifying the facts observed from the inspection and submit such report to the Supreme Court, the Judicial Council, the concerned High Court; and in case of

inspection of the office of a quasi-judicial body or officer, such report shall also be given to the concerned ministry and the concerned body authorized to act on behalf of the provincial government. (3) The Supreme Court may assign any judge of the Supreme Court, High Court or District Court to conduct a surprise inspection of the work and proceedings in any case or matter by any body or officer and submit a report. (4) The judge assigned to inspect under sub-section (3) shall, after completing the inspection work, prepare an inspection and evaluation report and send such report to the Supreme Court and the concerned ministry and the concerned body authorized to act on behalf of the provincial government. 23. Sending of Letter for Action: (1) If, from the inspection report made under this Act, it appears that any judge or officer has made any kind of error in relation to a case or matter, or has failed to do work required to be done, warranting action or prosecution against him/her, the Supreme Court may, stating the basis and reason thereof, send a letter to the Judicial Council or the concerned ministry. (2) Notwithstanding anything contained in sub-section (1), the Judicial Council or the concerned body may, on the basis of the inspection report submitted before it, initiate a process for action or prosecution against the concerned judge or officer, stating the reason. 24.

Power to Conduct Inquiry: (1) If the Chief Justice considers that any employee working in a court has committed irregularity in the work done by the court, or if a complaint or information is received through any source in that regard, the Chief Justice may assign any gazetted officer working in the court to conduct an inquiry. (2) The officer assigned to conduct an inquiry under sub-section (1) shall, within seven days of completing the assigned task, submit a report to the Chief Justice stating the details of the work done in that regard along with his/her opinion. (3) If it appears from the report received under sub-section (2) that an irregularity has been committed by any employee, a letter shall be sent to the concerned body or officer to take necessary action against such employee. Chapter-6 Miscellaneous 25. Provision relating to Closed Hearing: (1) Cases required to be heard in a closed hearing under the prevailing law shall be heard in a closed hearing. (2) Other provisions relating to closed hearing shall be as prescribed. 26. Special Provision for Hearing Habeas Corpus Petitions: (1) If a court is to remain closed for a period of three days or more, a judge shall be assigned as follows for receiving and hearing habeas corpus petitions during such holiday period:- (a) In the case of Kathmandu Valley, a Judge of the Supreme Court designated by the Chief Justice, (b) In the case of a district where a High Court and District Court are located, a Judge of the concerned High Court designated by the Chief Judge of the High Court. Explanation: For the purposes of this clause, "High Court" shall also mean the seat of the High Court. (c) In places other than those under clauses (a) and (b) where a District Court is located, the District Judge of the concerned District Court, and if there is more than one District Judge in such District Court, the District Judge designated by the District Judge acting as the head. (2) Notwithstanding anything contained in this Act or other prevailing law, the judge designated under sub-section (1) may, during the holiday period, issue an appropriate order upon a petition filed in the concerned court, and the concerned office-holder shall execute such order even during the holiday period. (3) The place for filing petitions and hearing them under this section shall be as determined by the judge designated under sub-section (1). 27.

Issuance of Search Warrant: (1) In proceedings upon a habeas corpus petition, the court may issue a search warrant in the following circumstances to ascertain the truth of the facts:- (a) If there is any reason for the court to believe that the detainee is being detained in an inhuman manner or is being subjected to unlawful torture, or (b) If the petitioner shows any reason for the court to believe that it is necessary to issue a search order because there is a possibility of moving the detainee elsewhere with the intention of evading the court's order, or (c) If the court feels that it is necessary or appropriate to issue a search order for any other similar reason. (2) While issuing a search warrant under sub-section (1), the court may, in the name of any officer or employee under its jurisdiction or in the service of the Government of Nepal, issue an order to search the

place or places where the detainee is said to be detained or where such suspicion exists, locate the detainee and produce him/her. While issuing such order, if the court deems necessary or appropriate, it may form a search team consisting of such employee, a person representing the petitioner, and office-holders of the local body, and authorize such team to conduct the search. (3) The person or team receiving the search order under sub-section (2) shall search for the detained person according to the direction of the court, and if the detained person is found, produce the detainee before the court immediately along with a report. (4) If there is any reason for the court to believe that the officer or employee receiving the order to search under sub-section (2) cannot identify the detainee, the court may order any other person specified in the warrant to assist in the execution of such search warrant. (5) If deemed necessary in relation to a habeas corpus petition, the court may itself or through any other subordinate court examine evidence to ascertain the truth regarding the detention. 28. Work to be Done by Judge Himself/Herself: (1) The judge shall himself/herself record statements or depositions in a case or render a judgment or order.

Provided that the judge shall not be prevented from having the judgment or order typed or written, and from having statements or depositions recorded by any employee of the court by questioning himself/herself. (2) Notwithstanding anything contained in sub-section (1), in the absence of the District Judge, the Registrar of the District Court may record statements or depositions and order the accused to be kept in custody, on bail, or on bond for trial. (3) After the District Judge attends the court, he/she shall consider the order made under sub-section (2), and if such order is not found to be according to law, he/she shall cause it to be done according to law. Added by Some Nepal Acts Amendment Act, 2075. 28A. Priority Order for Hearing Cases: (1) While conducting proceedings, hearing and deciding cases, the court shall do so according to the following priority order:- (a) Cases where a party is a person in detention during investigation, (b) Cases where a party is a person in custody for trial, (c) Cases of a party who is in imprisonment, (d) Cases where a party is a person with disability or a child, (e) Cases where a party is a person with physical disability or a person over the age of seventy-five years, (f) Cases relating to violence against women, (g) Cases relating to caste discrimination and untouchability, (h) Cases relating to name adoption or determination of relationship, (i) Cases relating to maintenance, (j) Cases relating to divorce, (k) Cases registered earlier in the order of registration. (2) Notwithstanding anything contained in sub-section (1), if there is more than one case of the same nature in the same order, the case registered earlier shall be proceeded with, heard and decided. Added by Ordinance Amending Certain Acts Relating to Criminal Offences and Criminal Procedure, 2077. Provided that, in cases involving murder, disfigurement or physical injury using acid, priority shall be given first regardless of when they were registered. (3) If, in any case, in addition to the persons referred to in clauses (a), (b) or (c) of sub-section (1), other persons are also parties, the proceedings, hearing and decision of such case shall also apply to such persons. (4) Notwithstanding anything contained in sub-sections (1) and (2), the court may, considering the seriousness and reasonableness of the case, give priority to any case and proceed with, hear and decide it. 29.

District Courts and District Judges Deemed Established and Posted: (1) District Courts existing at the time of commencement of this Act shall be deemed to have been established under this Act. (2) District Judges working in District Courts existing at the time of commencement of this Act shall be deemed to have been automatically posted in their respective District Courts. 30. Courts of Appeal to be Dissolved: Courts of Appeal existing at the time of commencement of this Act shall automatically dissolve after the commencement of this Act. 31. Transfer of Cases: (1) Cases, appeals, petitions and reports filed and pending to be decided in District Courts existing at the time of commencement of this Act shall automatically transfer to the concerned District Court established after the commencement of this Act. (2) If, at the time of commencement of this Act, the area of any district has been divided into two states pursuant to the

Constitution, until the boundary of such district is finalized, cases within such district that are to be originally conducted and adjudicated by a District Court or appeals to be heard under this Act or the prevailing law shall be heard by the District Court designated by the Government of Nepal, in consultation with the Judicial Council, by a notification published in the Nepal Gazette. Appeals against the decision of such District Court shall lie to the High Court, or appeals against a decision made by any body or officer under the prevailing law shall lie to the High Court. (3) Notwithstanding anything contained in sub-section (1), if the boundary of any district is altered and merged into another district pursuant to the Constitution, cases, petitions and reports pending in the District Court of such district shall transfer to the District Court designated by the Government of Nepal, in consultation with the Judicial Council, by a notification published in the Nepal Gazette. (4) Cases, petitions and reports filed and pending to be decided in Courts of Appeal at the time of commencement of this Act shall, after the commencement of this Act, transfer to the High Court designated by the Government of Nepal, in consultation with the Judicial Council, by a notification published in the Nepal Gazette. (5) If, after the commencement of this Act, the boundary of any Province is altered and merged into another Province, or the jurisdiction of any High Court or District Court is changed, cases, petitions and reports pending in such High Court or District Court shall transfer to the High Court or District Court designated by the Government of Nepal, in consultation with the Judicial Council, by a notification published in the Nepal Gazette.

Added by Some Nepal Acts Amendment Act, 2082.(6) The Government of Nepal may, by a notification published in the Nepal Gazette, form the following Appeal Committee to conduct proceedings, hear and decide appeals pending and transferred to the High Court pursuant to sub-section (9) of section 26 of the then-existing Act Relating to Reconstruction of Earthquake Affected Structures, 2072:-

(a) Judge designated by the Government of Nepal from among the Judges of the High Court on the advice of the Judicial Council - Chairperson

(b) Two members appointed by the Government of Nepal from among persons who have completed at least a master's degree from a recognized university in the field of infrastructure, engineering, law, economics, management, economic or public development, archaeology, public procurement or social development and have at least fifteen years of work experience in the related field - Member

Added by Some Nepal Acts Amendment Act, 2082.(7) After the formation of the Committee pursuant to sub-section (6), the concerned High Court shall, within one month, send the appeals under sub-section (9) of section 26 of the then-existing Act Relating to Reconstruction of Earthquake Affected Structures, 2072 and the related case files to such Committee. Added by Some Nepal Acts Amendment Act, 2082.(8) The procedure of the Committee formed pursuant to sub-section (6) shall be as specified in the same notification.

32. Appeals Lie: If, at the time of commencement of this Act, an appeal could be filed in a Court of Appeal under the then-prevailing law against a judgment, decision or final order made by a judicial, quasi-judicial body or officer, after the commencement of this Act, such appeal may be filed in the concerned High Court.

33. Application or Appeal against Decision of Court of Appeal: (1) If, at the time of commencement of this Act, an appeal could be filed in the Supreme Court under the then-prevailing law against a judgment or final order made by a Court of Appeal, after the commencement of this Act, such appeal may be filed in the Supreme Court.

(2) If, at the time of commencement of this Act, a petition could be filed in the Supreme Court for retrial of a case under the then-prevailing law against a judgment or final order made by a Court of Appeal, after the commencement of this Act, such petition may be filed in the Supreme Court. 34. Case Files, Documents or Details to be Sent: (1) If any court, judicial, quasi-judicial body or officer orders any office to submit or send any case files, documents or details as evidence in a case, or seeks clarification or answer on any matter,

such office shall